

24NWCV02722 24NWCV02722

County: los-angeles

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Case Number: 24NWCV02722 Hearing Date: July 13, 2026 Dept: SED

ESTATE OF CHRISTOPHER

FARIAS ORTIZ, ET AL. V. NEWPORT DIVERSIFIED, INC.

CASE NO.: 24NWCV02722

HEARING: 07/13/2026 @ 9:30 a.m.

#14

TENTATIVE ORDER

Defendant Newport Diversified,
Inc's motion to compel Plaintiff Andrea Ortiz's Responses to Requests for
Production, Set Two is GRANTED.

The Court GRANTS Defendant
Newport Diversified's request for sanctions in the reduced amount of \$825.00
against Plaintiff Andrea Ortiz and her attorneys, jointly and severally.

Plaintiff Andrea Ortiz is
ordered to submit verified responses, without objections, within 30 days of
this order.

Sanctions are to be paid
within 30 days of notice of this order.

Moving party to give notice.

Defendant Newport Diversified

(Newport Diversified) moves for an order compelling Plaintiff Andrea Ortiz's (Ortiz) response to Newport Diversified's Request for Production of Documents, Set Two.

Newport Diversified also seeks monetary sanctions in the amount of \$2,200.00.

Background

On July 31, 2025, Plaintiffs Estate of Christopher Farias Ortiz, by and through his successors in interest, Andrea Ortiz and Ramon Farias, Andrea Ortiz, and Ramon Farias, an incompetent adult, by and through his Guardian Ad Litem, Estrella Soto, (collectively, Plaintiffs), filed the operative Second Amended Complaint against Defendants Newport Diversified, Inc., MIB-Shield LLC, Rudy Zazueta, Security Guard Reynoso, and Does 1 through 10, inclusive, asserting six causes of action: (1) Wrongful Death; (2) Negligence; (3) Negligent Hiring, Training, Retention & Supervision; (4) Assault & Battery; (5) Violation of Civil Code Section 52.1 (Tom Bane Civil Rights Act); and (6) Premise Liability.

On May 26, 2026, Newport Diversified filed the instant motion to compel.

Ortiz filed an opposition on June 30, 2026. Ortiz's opposition was due on or before June 29, 2026. (Code Civ. Proc., § 1005, subd. (b) ["All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days"].) Accordingly, the opposition is untimely and the Court declines to consider it in its tentative ruling.

No reply has been filed.

Legal Standard

Requests for
Production of Documents

A party must respond to requests

for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260(a).) If a party to whom requests for production of documents is directed does not provide timely responses, the requesting party may move for an order compelling response to the discovery. (Code Civ. Proc., § 2031.300(c).) The party also waives the right to make any objections, including ones based on privilege or work-product protection. (Code Civ. Proc., § 2031.300(a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020(a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Sanctions

If a motion to compel responses is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes the motion unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2031.300, subd. (c), 2023.030, subd. (a).)

Meet and Confer

Meeting and conferring is not required for a motion to compel initial responses. (Code Civ. Proc., § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) However, the Court notes that Newport Diversified attempted to meet and confer with Ortiz prior to bringing this motion. (Reid Declaration, ¶¶ 52-54, Exs. R, S.)

Analysis

On March 11, 2026, Newport Diversified served Ortiz with Requests for Production of Documents, Set Two. (Reid Decl., ¶¶ 45-46, Ex. Q.) Ortiz's responses were initially due on April 10, 2026. (Id. at ¶ 47.) On that date, Ortiz requested a three-week extension. (Ibid., Ex. R.) Newport Diversified agreed to a one-week

extension, making the new response deadline April 17, 2026. (Id. at ¶ 49.)

On April 17, 2026, Newport

Diversified received unverified and otherwise non-code-compliant responses. (Id. at ¶¶ 50-51, Ex. R.) On April 27, 2026, Newport Diversified sent a

meet-and-confer letter identifying the deficiencies and requested that Ortiz

advise by May 1, 2026, whether verified, code-compliant supplemental responses

would be served; otherwise, Newport Diversified would proceed with filing the

instant motion. (Id. at ¶¶ 52-54,

Exs. R, S.) On May 12, 2026, Ortiz

represented that supplemental responses would be served by May 15, 2026. (Id. at ¶¶ 55, Ex. R.) As of the filing of this motion, Ortiz had not

served verified responses. (Id.

at ¶ 64.)

Newport Diversified has

demonstrated that it propounded Requests for Production, Set Two, and that

Ortiz has failed to serve verified responses. An unverified response is ineffective and is

the equivalent of no response at all. (Appleton

v. Superior Court (1988) 206 Cal.App.3d 632, 636.) Therefore, Ortiz's unverified responses do not

satisfy its obligations under the Discovery Act.

Accordingly, the Court GRANTS Newport

Diversified's Motion to Compel Ortiz's Responses to Requests for Production of

Documents, Set Two.

Sanctions

Newport Diversified also requests monetary sanctions against Ortiz and

its counsel in the amount of \$2,200.00, based on 0.6 hours preparing Requests

for Production of Documents, Set Two, 4.4 hours communicating with Ortiz's

counsel, researching and preparing the instant motion, 2.0 hours anticipated

for reviewing any opposition and preparing a reply brief, and 1.0 hour

appearing at the hearing, at an hourly rate of \$275.00. (Reid Decl., ¶ 65.)

Here, as discussed above, the Court grants Newport Diversified's motion

to compel; therefore, monetary sanctions are warranted. (Code Civ. Proc., §§ 2031.300, subd. (c),

2023.030, subd. (a).) However, the Court

finds that the 0.6 hours billed for preparing the underlying discovery requests

are not recoverable as expenses incurred in bringing the instant motion. Likewise, time spent communicating with

Ortiz's counsel is not compensable as part of the reasonable expenses of making this motion. In addition, although counsel anticipated spending 2.0 hours reviewing an opposition and preparing a reply, no reply was filed because Ortiz's opposition was untimely and was not considered by the Court. Under these circumstances, the Court finds that 3.0 hours of attorney time to prepare the instant motion and appear at the hearing is reasonable.

Accordingly, at an hourly rate of \$275.00, the Court awards monetary sanctions in the reduced amount of \$825.00.

Conclusion

Based on the foregoing, Defendant Newport Diversified, Inc's motion to compel Plaintiff Andrea Ortiz's Responses to Requests for Production, Set Two is GRANTED.

The Court GRANTS Defendant Newport Diversified's request for sanctions in the reduced amount of \$825.00 against Plaintiff Andrea Ortiz and her attorneys, jointly and severally.

Plaintiff Andrea Ortiz is ordered to submit verified responses, without objections, within 30 days of this order.

Sanctions are to be paid within 30 days of notice of this order.